

Ordinance No. 3
Series 2026

AN ORDINANCE ADOPTING BY REFERENCE THE 2024 EDITIONS OF THE FOLLOWING CODES: INTERNATIONAL BUILDING CODE, INTERNATIONAL RESIDENTIAL CODE, INTERNATIONAL MECHANICAL CODE, INTERNATIONAL FUEL GAS CODE, INTERNATIONAL PLUMBING CODE, INTERNATIONAL ENERGY CONSERVATION CODE, INTERNATIONAL PROPERTY MAINTENANCE CODE, INTERNATIONAL EXISTING BUILDING CODE, AND THE 2023 EDITION OF THE NATIONAL ELECTRICAL CODE; ADOPTING AMENDMENTS THERETO; REPEALING ALL ORDINANCES IN CONFLICT THEREWITH; STATING THE PENALTIES FOR VIOLATING THE SAME; AND MAKING CONFORMING AMENDMENTS TO TITLE 15 OF THE GEORGETOWN MUNICIPAL CODE

WHEREAS, pursuant to Part 2, Article 16, Title 31 of the Colorado Revised Statutes, the Town of Georgetown (the "Town") possesses the authority to adopt uniform codes by reference; and

WHEREAS, pursuant to this authority, the Town previously adopted the 2015 editions of various building and technical codes and codified such adopted codes in Title 15 of the Georgetown Municipal Code ("Code"); and

WHEREAS, in furtherance of the public health, safety, and welfare of Town residents, guests, and visitors, the Board of Selectmen (the "Board") desires to update the Code to include the 2023 and 2024 editions of the International Codes ("Codes") as recommended by the Town's Building Official and Fire Code Official; and

WHEREAS, after due and proper notice in accordance with C.R.S. § 31-16-203, the Board conducted a public hearing on the adoption of the Codes by reference, at which time all interested parties were given the opportunity to be heard; and

WHEREAS, copies of the Codes adopted by reference herein were filed in the office of the Town Clerk at least fifteen (15) days preceding the hearing and remain there for public inspection at Georgetown Town Hall, 404 6th St., Georgetown, CO 80444; and

WHEREAS, based upon its review of the Codes referenced herein and all evidence and testimony presented on the matter, the Board finds and determines that the Codes adopted hereby, as amended herein will further the health, safety, and welfare of the inhabitants of the Town.

NOW THEREFORE, BE IT ORDAINED BY THE BOARD OF SELECTMEN OF THE TOWN OF GEORGETOWN, COLORADO, AS FOLLOWS;

Section 1. Title 15, Chapters 15.04, 15.08, 15.12, 15.16, 15.20, 15.24, 15.32, 15.44, 15.48, and 15.50 of the Code, concerning technical building codes and building regulations, are hereby amended, and Chapter 15.51 is adopted, to read as follows:

CHAPTER 15.04 Adoption of Technical Codes¹

15.04.010 International codes adopted by reference, as amended.

Pursuant to Title 31, Article 16, Part 2, C.R.S., there are hereby adopted by reference the following uniform codes and standards, as amended, as the Town's codes and standards governing the construction, maintenance and safety of buildings and other structures. Unless otherwise specified, the codes incorporated into this Section by reference are published by the International Code Council, 200 Massachusetts Ave NW, Suite 250, Washington, D.C. 20001, 60478-5795 and shall have the same legal force and effect as if set forth herein in every particular. Amendments to the uniform codes adopted by the Town are set forth in specified chapters contained in this Title. The subject matter of the adopted codes includes standards regulating the erection, construction, demolition, occupancy, equipment, use, electrical wiring, fire safety, plumbing and maintenance of buildings and structures within the Town, and is designed and intended to protect and preserve the public health, safety and welfare.

- (1) The International Building Code, 2024 Edition, specifically including Appendices C and I, the purpose of which is to safeguard the public health, safety and general welfare by establishing minimum requirements for structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation and safety to life and property from fire and other hazards attributed to the built environment, and to provide safety to firefighters and emergency responders during emergency operations.
- (2) The International Mechanical Code, 2024 Edition, the purpose of which is to provide minimum standards relating to the mechanical installations in or in connection with the construction, alteration and repair of new and existing structures, including design, construction, installation, quality of materials, locations, operation and maintenance or use of heating, ventilation, cooling refrigeration systems, incinerators and other miscellaneous heat-producing appliances.
- (3) The International Plumbing Code, 2024 Edition, specifically including Appendices C, and E, the purpose of which is to safeguard life or limb, health, property and public welfare by providing minimum standards for regulating and controlling the design, construction, installation, quality of materials, location, operation and maintenance or use of plumbing equipment and systems.
- (4) The National Electrical Code, 2023 Edition, published by the National Fire Protection Association 1 Batterymarch Park, Quincy, Massachusetts 02169, or such other later

¹Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.04, §§ 15.04.010—15.04.060 and enacted a new ch. 15.04, §§ 15.04.010—15.04.060 as set out herein. Former ch. 15.04 pertained to similar subject matter and derived from Ord. 447, adopted 1992; Ord. 463, adopted 1994; Ord. 2, adopted 2003; and Ord. 13, adopted 2008.

edition or code utilized by the State Electrical Board pursuant to Section 12-23-104(2)(a), C.R.S.

- (5) The International Energy Conservation Code, 2024 Edition, the purpose of which is to encourage energy conservation through efficiency in envelope design, mechanical systems, lighting systems and the use of new materials and techniques.
- (6) The International Residential Code, 2024 Edition, specifically including Appendix H, the purpose of which is to safeguard the public safety, health and general welfare by providing minimum requirements for affordability, structural strength, means of egress facilities, stability, sanitation, light and ventilation, energy conservation and safety to life and property from fire and other hazards attributed to the built environment.
- (7) The International Existing Buildings Code, 2024 Edition, the purpose of which is to provide an alternate set of standards for construction in and within existing buildings.
- (8) The International Fuel Gas Code, 2024 Edition, specifically including Appendices A, B and C, the purpose of which is to safeguard life or limb, health, property and public welfare by providing minimum standards for regulating and controlling the design, construction, installation, quality of materials, location, operation and maintenance or use of fuel gas systems.
- (9) The International Property Maintenance Code, 2024 Edition, the purpose is to provide requirements for continued use and maintenance of building elements, site conditions, swimming pools, plumbing, mechanical, electrical and fire protection systems in existing residential and nonresidential structures.

15.04.020 Penalties for violations of codes.

- (a) (a) It shall be unlawful for any person, owner, occupant or contractor to erect, construct, enlarge, alter, repair, move, improve, remove, rehabilitate, convert, demolish, use, occupy, equip or maintain any building or structure in the Town, or cause the same to be done, contrary to or in violation of any of the provisions of this Title and the Town's building codes or regulations. Violation of this Code means:
 - (1) Doing an act that is prohibited or made or declared unlawful, an offense or a misdemeanor by ordinance or by rule or regulation authorized by ordinance;
 - (2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance; or
 - (3) Failure to perform an act if the failure is declared a misdemeanor, an offense or unlawful by ordinance or by rule or regulation authorized by ordinance.

- (b) Violation of this Code does not include the failure of a Town officer or Town employee to perform an official duty unless it is provided that failure to perform the duty is to be punished as provided in this Section.
- (c) Violations of this Title 15 are noncriminal offenses and are civil matters. Trial of noncriminal offenses shall be by the court. No defendant found civilly liable for a non-criminal offense shall be punished by imprisonment for such offense, but may be fined an amount not to exceed two thousand six hundred fifty dollars (\$2,650.00). With respect to violations of this Code which are continuous, a separate offense shall be deemed committed for each day the violation occurs or continues.
- (d) The imposition of a penalty does not prevent revocation or suspension of a license, permit or franchise.
- (e) Violations of this Code which are continuous may be abated by injunctive or other equitable relief. The imposition of a penalty does not prevent equitable relief.
- (f) The imposition of a penalty as provided in this Section shall not excuse a violation or permit it to continue, and all persons penalized may be required to correct or remedy the violation or defects within a reasonable time.

15.04.030 Fees.

Every permit application submitted and/or permit issued under the codes adopted in this Chapter shall be subject to the full and timely payment of a fee. Unless set by ordinance or established within a uniform code adopted pursuant to this Chapter, the Town Administrator shall establish and update from time to time a permit fee schedule setting forth all applicable fees and taking into consideration the time and cost to the Town in reviewing a permit application and building plans, and for conducting inspections. All fees established by the Town Administrator must be approved by resolution of the Board of Selectmen. The Town Clerk shall prominently post up and otherwise make available to interested persons copies of the fee schedule at Town Hall. In the event the Town is required to retain consultants or outside experts to review and/or approve any permit application, or to conduct any inspection pursuant to a permit, the permit applicant or permit holder shall bear the cost for the same, which shall be made part of the application or permit fee.

15.04.040 Copies of codes.

A true and certified copy of each code adopted by the Town under this Chapter is available electronically; persons wishing a copy of any code adopted hereby may request instructions for doing so from the office of the Town Clerk.

15.04.050 Nonliability.

The adoption of the codes and standards in this Title shall not create any duty to any person, firm or corporation with regard to the enforcement or nonenforcement of said codes and standards. No person, firm or corporation shall have any civil liability remedy against the Town, its officers, employees or agents for any damages arising out of or in any way connected with the

adoption, enforcement or nonenforcement of said codes or standards. Nothing in the codes and standards adopted herein shall be construed to create any liability or to waive any of the immunities, limitations on liability or other provisions of the Governmental Immunity Act, Section 24-10-101 et seq., C.R.S., or to waive any immunities or limitations on liability otherwise available.

15.04.060 Application to historic buildings.

The Town shall administer the codes and standards adopted in this Title in a manner that protects the integrity and significant features of the Town's historic structures, including allowing deviations from the codes and standards in order to reduce impacts on the features and materials of historic structures. In this Section, the term historic structure shall mean a structure listed or eligible for listing in the National Register of Historic Places or designated as historic under an appropriate state or local law. The Town also prohibits demolition of such structures by neglect under Title 17, Chapter 17.09.

CHAPTER 15.08 Building Code Amendments²

15.08.010 Sections amended.

The following sections of the International Building Code adopted in Section 15.04.010 of this Title are amended as hereinafter provided:

- (1) The term "building official" shall be substituted for the term "code official" throughout the International Building Code.
- (2) Section 101.1 (Title) is amended by the addition of the term "Town of Georgetown" where indicated.
- (3) Sections 101.4 (Referenced codes), 101.4.1 (Gas), 104.4.2 (Mechanical), 104.4.3 (Plumbing), 104.4.4 (Property maintenance), 104.4.5 (Fire prevention), 104.4.6 (Energy) and 104.4.7 (Existing buildings) are amended by deleting the sections in their entirety.
- (4) Section 102.4 (Referenced codes and standards) is amended by deleting the words "codes and" from the first sentence.
- (5) Section 103 (Code compliance agency) is amended by deleting the section in its entirety and replacing it with the following: "Section 103. Design Review Commission
"103.1 Duties. The Design Review Commission of the Town shall determine the historical significance of a contested portion of a structure and shall perform all other duties pursuant to Title 17."
- (6) Section 104.7 (Official records) is amended by deleting the section in its entirety and replacing the section with the following:

²Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.08, §§ 15.08.010, 15.08.020 and enacted a new ch. 15.08, §§ 15.08.010, 15.08.020 as set out herein. Former ch. 15.04 pertained to similar subject matter and derived from Ord. 2, adopted 2003 and Ord. 13, adopted 2008.

"The Town shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for the period required for retention of public records."

The International Building Code is further amended by replacing all other references to "the building official keeping official records" to "the Town keeping official records."

- (7) Section 105.1 is amended by inserting "and shall second, make application to the Design Review Commission for a Certificate of Appropriateness and obtain the required document" at the end of the final sentence in the section.

- (8) Section 105.5 (Expiration) shall be amended by the addition of the following sentences:

"Every permit shall also become invalid two years after its issuance. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each. The extension shall be requested in writing and justifiable cause demonstrated. The Certificate of Appropriateness shall terminate or expire along with the applicable building permit."

- (9) Section 105.6 (Suspension or revocation) shall be amended by the addition of the following sentence: "The Certificate of Appropriateness shall be suspended or revoked along with the applicable building permit."
- (10) Section 109.2 (Schedule of permit fees) is amended by deleting the section in its entirety and replacing the section with the following: "Plan review fees, permit fees, zoning fees and all other fees and bonds shall be in the amounts established from time to time by resolution of the Board of Selectmen."
- (11) Section 113.1 (General) is amended by deleting the last two (2) sentences and inserting the following: "The members of the Board of Appeals shall be comprised of the members of the Board of Selectmen."
- (12) Section 113.3 (Qualifications) is amended by deleting the section in its entirety.
- (13) Section 114.3 (Prosecution of violation) is amended to read as follows: "Prosecution of violation. If notice of violation is not complied with within thirty (30) days, the building official is authorized to request the legal counsel of the jurisdiction to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building or structure in violation of the provisions of this code or of the order or direction made pursuant thereto. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than thirty (30) days each. The extension shall be requested in writing and justifiable cause demonstrated."
- (14) The International Building Code is amended by adding a new Section 117 (Completion of Work) as follows:

Section 117. Completion of Work

117.1 Bond. The Town may require a cleanup and completion bond to ensure completion of construction, landscaping, or other work for which a permit is required.

The bond shall be a cash deposit or other security acceptable to the Town Administrator, which shall be paid at the time other building permit fees are paid. The bond shall be in accordance with a fee schedule established by the Town.

117.2 Right of entry. The Town shall have the right to enter property upon which construction, landscaping, or work for which a permit is required is taking place and shall have the right to complete private improvements for which a permit is required. The Town shall have the right to reimbursement for any and all costs not covered by the bond required by Section 117.1.

- (15) Section 503 (Definitions) is amended by deleting the definition of "Height, Building" and replacing the definition with the following:

"HEIGHT, BUILDING. The distance measured on a vertical plane from the average historic grade, or from the post-construction grade at the perimeter walls of a building or structure, whichever is lower, to: (1) the highest point of the coping of a flat roof, or (2) the highest point along the ridge or deck line of a mansard roof, or (3) to the mid-point of the highest gable of a pitched, shed or hipped roof measured from the highest associated eave. Chimneys, antennae, flag poles, bell towers, spires, steeples, vents or other roof or building appurtenances extending from the surface of a roof shall not be measured in calculating building height; however, such appurtenances shall not extend more than ten (10) feet above the building height absent a duly approved variance, except for mechanical equipment, which may not extend more than five (5) feet above the building height."

- (16) Section 1603.1 (Construction Documents - General) is amended by inserting the following sentence: "A registered design professional shall design and affix their professional seal to construction documents for buildings utilizing rafters or other non-engineered roof structures," and by filling in the following information:

1. Roof snow load, 75 lbs. per square foot.
2. Frost depth, 42 inches below finished grade.
3. Wind load, 100 mph.; (Ord. 4 § 1, 2016)

15.08.020 Conflicts.

Notwithstanding any provision contained in the International Building Code, the definition of height and the method for measuring building height shall be governed by the definition for *height* contained in Title 17 of this Code. Additionally, the Board of Selectmen shall serve as the Building Board of Appeals and hear all appeals from the orders, decisions or determinations made by the Building Official under the Code, and will have the authority to grant variances from the requirements of the Building Code upon written application and a showing of hardship, technical or design impracticality, or other good cause.

CHAPTER 15.12 Mechanical Code Amendments³

³Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.12, § 15.12.010 and enacted a new ch. 15.12, § 15.12.010 as set out herein. Former ch. 15.12 pertained to similar subject matter and derived from Ord. 13, adopted 2008.

15.12.010 Sections amended.

The following sections of the International Mechanical Code adopted in Section 15.04.010 of this Title are amended as hereinafter provided:

- (1) The term "building official" shall be substituted for the term "code official" throughout the International Mechanical Code.
- (2) Section 101.1 (Title) is amended by the addition of the term "Town of Georgetown" where indicated.
- (3) Section 102.8 is amended by deleting the words "codes and" from the first sentence.
- (4) Section 108.3 is amended by deleting the section in its entirety and replacing the section with the following: "Permit fees and all other fees shall be in the amounts established from time to time by resolution of the Board of Selectmen."
- (5) Section [A]C101.2 is amended by deleting the number "20" and inserting the number "30."
- (6) Sections 113.3 amended by deleting the sections in their entirety.
- (7) Section 306.3 is amended by inserting the words "or portion thereof" after "appliance" in the first sentence.
- (8) Section 306.4 is amended by inserting the words "or portion thereof" after "appliance" in the first sentence.
- (9) Section 309.1 is amended by inserting the words "and 2 feet from exterior walls in all habitable rooms" between "above floor" and "the design heating day" in the first sentence.

CHAPTER 15.16 Plumbing Code Amendments⁴

15.16.010 Sections amended.

The following sections of the International Plumbing Code adopted in Section 15.04.010 of this Title are amended as hereinafter provided:

- (1) The term "building official" shall be substituted for the term "code official" throughout the International Plumbing Code.
- (2) Section 101.1 Title is amended by the addition of the term "Town of Georgetown" where indicated.
- (3) Section 102.8 (Referenced codes and standards) is amended by deleting the words "codes and" from the first sentence.

⁴Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.16, § 15.16.010 and enacted a new ch. 15.16, § 15.16.010 as set out herein. Former ch. 15.16 pertained to similar subject matter and derived from Ord. 13, adopted 2008.

- (4) Section 108.2 (Fee schedule) is amended by deleting the section in its entirety and replacing the section with the following: "Permit fees and all other fees shall be in the amounts established from time to time by resolution of the Board of Selectmen."
- (5) Sections 108.6 (Fee refunds) are amended by adding "up to 75 percent of permit fees."
- (6) Sections 113 (Board of Appeals) is amended by deleting the sections in their entirety.

CHAPTER 15.20 Fire Code⁵

15.20.010 Clear Creek Fire Authority.

In order to maximize public fire-fighting capabilities and the delivery of emergency services on a regional basis, the Town has entered into an intergovernmental agreement creating the Clear Creek Fire Authority. Pursuant to the Clear Creek Fire Authority Intergovernmental Agreement, or any such similar agreement that should replace said intergovernmental agreement, the Clear Creek Fire Authority shall have and exercise all those powers and functions as vested in a fire protection district under Sections 32-1-1001 and 32-1-1002, C.R.S., and/or as limited by the intergovernmental agreement, and shall exercise such powers and functions within the Town.

15.20.020 Delegation of authority to adopt and amend fire code.

- (a) Notwithstanding any other provision in this Title, and consistent with the Clear Creek Fire Authority Intergovernmental Agreement as referenced in Section 15.20.010 above, the Clear Creek Fire Authority (the "Authority") is hereby delegated the authority and power to adopt and amend such fire codes and fire code regulations for application and enforcement within the Town as it may deem necessary to protect and preserve the public health, safety and welfare. The delegation of authority and power as provided for herein shall be vested in the Authority subject to the continued validity of the Clear Creek Fire Authority Intergovernmental Agreement and the Town's membership and participation therein.
- (b) The International Fire Code as adopted pursuant to Chapter 15.04 of this Title shall continue to be enforced within the Town until such time as a new fire code and/or regulations have been approved and adopted by the Authority.

(Ord. 4 § 1, 2016)

15.20.030 Delegation of authority to enforce fire code and conduct fire code inspections; fees.

Consistent with and subject to the Clear Creek Fire Authority Intergovernmental Agreement as referenced in Section 15.20.010 above, the Clear Creek Fire Authority is hereby delegated the authority and power to enforce all fire codes and fire safety regulations within the Town, to

⁵Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.20, §§ 15.20.010—15.20.050 and enacted a new ch. 15.20, §§ 15.20.010—15.20.050 as set out herein. Former ch. 15.20 pertained to similar subject matter and derived from Ord. 498, adopted 1999; Ord. 2, adopted 2003; and Ord. 13, adopted 2008.

undertake and conduct fire code and fire safety inspections, and to set, charge and collect reasonable fees with respect thereto.

15.20.040 Copies of fire code.

No less than one (1) copy of the fire code and fire safety regulations adopted by the Clear Creek Fire Authority shall be made available at all times for public inspection and copying during regular business hours in the office of the Town Clerk. Copies of such codes and regulations shall also be made available for sale to the public upon request. Notwithstanding the foregoing, a failure to have a copy or copies of the fire codes or regulations available to the public at any given time shall not be a defense to any prosecution of a violation of the fire code or fire safety regulations.

15.20.050 Penalties.

It shall be unlawful for any person to violate any provision of the fire code or fire safety regulations adopted by the Town and the Clear Creek Fire Authority, inclusive of the International Fire Code, as amended, and any person found to have violated such codes or regulations shall be subject to a fine of not more than one thousand dollars (\$1,000.00), or imprisonment for a term not to exceed one (1) year, or both such fine and imprisonment.

CHAPTER 15.24 Electrical Code⁶

15.24.010 National Electrical Code adopted.

- (a) The National Electric Code 2023 edition, published by the National Fire Protection Association, 1 Batterymarch Park, Quincy, Massachusetts 02169 (commonly referred to as the "NEC"), is hereby adopted by reference as if set forth herein. The subject matter of the adopted code includes provisions and standards considered necessary for safe electrical design, installation, and inspection to protect consumers and property from electrical hazards.
- (b) No building shall be hereafter constructed, erected, enlarged, altered, or moved into the Town unless the same shall, as to design, construction, quality of materials and workmanship, conform with the National Electrical Code, as adopted and as may be amended.

(Ord. 2 §1, 2022)

15.24.020 Penalties for violation of the National Electrical Code.

It is unlawful and shall be a violation of the Municipal Code for any person to erect, install, repair, alter, relocate, add to, replace, demolish, use, occupy, or maintain any building or

⁶Editor's note(s)—Ord. 2 §1, adopted April 26, 2022, repealed ch. 15.24, § 15.24.010 and enacted a new ch. 15.24 as set out herein. Former ch. 15.24 pertained to Electrical Code amendments and derived from Ord. 4 §1, adopted in 2016.

structure, or cause or permit the same to be done, in violation of the National Electric Code as adopted by the Town of Georgetown ("NEC"). In addition to other sanctions set forth in the NEC, a person who violations the NEC may have his or her license and/or permit revoked or suspended and/or upon conviction in the municipal court, may be punished by a fine penalty in an amount not to exceed two thousand six hundred fifty dollars (\$2,650.00).

CHAPTER 15.32 Energy Code Amendments⁷

15.32.010 Sections amended.

The following sections of the International Energy Conservation Code adopted in Section 15.04.010 of this Title are amended as hereinafter provided:

- (1) The term "building official" shall be substituted for the term "code official" throughout the International Energy Conservation Code.
- (2) Section 101.1 (Title) is amended by the addition of the term "Town of Georgetown" where indicated.

CHAPTER 15.44 Residential Code Amendments⁸

15.44.010 Sections amended.

The following sections of the International Residential Code adopted in Section 15.04.010 of this Title are amended as hereinafter provided:

- (1) The term "building official" shall be substituted for the term "code official" throughout the International Residential Code.
- (2) Section 101.1 (Title) is amended by the addition of the term "Town of Georgetown" where indicated.
- (3) Section 102.4 is amended by deleting the words "codes and" from the first sentence.
- (4) Section 103 (Code Compliance Agency) is amended by deleting the section in its entirety and replacing it with the following:

Section 103. Design Review Commission

103.1 Duties. The Design Review Commission of the Town shall determine the historical significance of a contested portion of a structure and shall perform all other duties assigned to it pursuant to Title 17.

- (5) Section 104.7 (Department records) is amended by deleting the section in its entirety and replacing the section with the following:

⁷Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.32, § 15.32.010 and enacted a new ch. 15.32, § 15.32.010 as set out herein. Former ch. 15.24 pertained to similar subject matter and derived from and Ord. 13, adopted 2008.

⁸Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.44, § 15.44.010 and enacted a new ch. 15.44, § 15.44.010 as set out herein. Former ch. 15.44 pertained to similar subject matter and derived from Ord. 13, adopted 2008.

"The Town shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections and notices and orders issued. Such records shall be retained in the official records for the period required for retention of public records."

"The International Residential Code is further amended by replacing all other references to the 'building official keeping official records' to the 'Town keeping official records.'"

- (6) Section 105.1 is amended by inserting "and shall second, make application to the Design Review Commission for a Certificate of Appropriateness and obtain the required document" at the end of the final sentence in the section.
- (7) Section 105.2 (1) is amended by deleting the number "200" and inserting the number "120."
- (8) Section 105.2(10) deleted in its entirety.
- (9) Section 105.5 (Expiration) shall be amended by the addition of the following sentences:

"Every permit shall also become invalid two years after its issuance. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each. The extension shall be requested in writing and justifiable cause demonstrated. The Certificate of Appropriateness shall terminate or expire along with the applicable building permit."

- (10) Section 105.6 (Suspension or revocation) shall be amended by the addition of the following sentence: "The Certificate of Appropriateness shall be suspended or revoked along with the applicable building permit."
- (11) Section 108.2 is amended by deleting the section in its entirety and replacing the section with the following: "Permit fees and all other fees shall be in the amounts established from time to time by resolution of the Board of Selectman."
- (12) Section 112.1 (General) is amended by deleting the last two sentences and inserting the following: "The members of the Board of Appeals shall be comprised of the members of the Board of Selectmen."
- (13) Section 112.3 (Qualifications) is amended by deleting the section in its entirety.
- (14) Section 113.3 (Prosecution of violation) is amended to read as follows:

"Prosecution of violation. If notice of violation is not complied with within thirty (30) days, the building official is authorized to request the legal counsel of the jurisdiction to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building or structure in violation of the provisions of this code or of the order or direction made pursuant thereto. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than thirty (30) days each. The extension shall be requested in writing and justifiable cause demonstrated."

- (15) The International Residential Code is amended by adding a new Section 115 (Completion of Work) as follows:

Section 115. Completion of Work

115.1 Bond. The Town may require a cleanup and completion bond to ensure completion of construction, landscaping, or other work for which a permit is required. The bond shall be a cash deposit or other security acceptable to the Town Administrator, which shall be paid at the time other building permit fees are paid. The bond shall be in accordance with a fee schedule established by the Town.

115.2 Right of entry. The Town shall have the right to enter property upon which construction, landscaping, or work for which a permit is required is taking place and shall have the right to complete private improvements for which a permit is required. The Town shall have the right to reimbursement for any and all costs not covered by the bond required by Section 116.1.

- (16) Section 202 (Definitions) is amended by deleting the definition of "Height, Building" and replacing the definition with the following:

HEIGHT, BUILDING. The distance measured on a vertical plane from the average historic grade, or from the post-construction grade at the perimeter walls of a building or structure, whichever is lower, to: (1) the highest point of the coping of a flat roof, or (2) the highest point along the ridge or deck line of a mansard roof, or (3) to the mid-point of the highest gable of a pitched, shed or hipped roof measured from the highest associated eave. Chimneys, antennae, flag poles, bell towers, spires, steeples, vents or other roof or building appurtenances extending from the surface of a roof shall not be measured in calculating building height; however, such appurtenances shall not extend more than ten (10) feet above the building height absent a duly approved variance, except for mechanical equipment, which may not extend more than five (5) feet above the building height."

- (17) Table R 302.1.2(1) is filled in to provide the following:

Table R301.2 (1)

Ground Snow Load	Roof Snow Load	Wind Speed (mph)	Seismic Design Category	Subject to Damage From			Decay	Winter Design Temp	Ice Shield Underlay ment- Required	Flood Hazard	Air Freezing Index
75 psf	75 psf	V ^{ult} = 140 mph	B	Severe	42 in.	Slight to Moderate	None to Slight	1° F	YES	Per FEMA Flood Map	1000

R309 One- and two-family dwellings automatic fire systems. Delete this section in its entirety.

(Ord. 4 § 1, 2016)

(Ord. No. 1, § 1, 2021)

CHAPTER 15.48 Existing Buildings Code Amendments⁹

15.48.010 Sections amended.

The following sections of the International Existing Buildings Code adopted in Section Chapter 15.48 of this Title are amended as hereinafter provided:

- (1) The term "building official" shall be substituted for the term "code official" throughout the International Existing Buildings Code.
- (2) Section 101.1 (Title) is amended by the addition of the term "Town of Georgetown" where indicated.
- (3) Section 102.4 is amended by deleting the words "codes and" from the first sentence.
- (4) Section 103 (Code compliance agency) is amended by deleting the section in its entirety and replacing it with the following: "Section 103. Design Review Commission" 103.1 Duties. The Design Review Commission of the Town shall determine the historical significance of a contested portion of a structure and shall perform all other duties assigned to it pursuant to Title 17."
- (5) Section 104.7 (Official records) is amended by deleting the section in its entirety and replacing the section with the following: "The Town shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for the period required for retention of public records."

The International Existing Buildings Code is further amended by replacing all other references to the "building official keeping official records" to the "Town keeping official records."

- (6) Section 105.1 is amended by inserting "and shall second, make application to the Design Review Commission for a Certificate of Appropriateness and obtain the required document" at the end of the final sentence in the section.
- (7) Section 105.5 (Expiration) shall be amended by the addition of the following sentences:

"Every permit shall also become invalid two years after its issuance. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each. The extension shall be requested in writing and

⁹Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.48, § 15.48.010 and enacted a new ch. 15.48, § 15.48.010 as set out herein. Former ch. 15.48 pertained to similar subject matter and derived from Ord. 13, adopted 2008.

justifiable cause demonstrated. The Certificate of Appropriateness shall terminate or expire along with the applicable building permit."

- (8) Section 105.6 (Suspension or revocation) shall be amended by the addition of the following sentence: "The Certificate of Appropriateness shall be suspended or revoked along with the applicable building permit."
- (9) Section 109.2 is amended by deleting the section in its entirety and replacing the section with the following: "Permit fees and all other fees shall be in the amounts established from time to time by resolution of the Board of Selectmen."
- (10) Section 113.1 (General) is amended by deleting the last two sentences and inserting the following:

"The members of the Board of Appeals shall be comprised of the members of the Board of Selectmen."
- (11) Section 113.3 (Qualifications) is amended by deleting the section in its entirety.
- (12) Section 114.3 (Prosecution of violation) is amended to read as follows: "Prosecution of violation. If notice of violation is not complied with within thirty (30) days, the building official is authorized to request the legal counsel of the jurisdiction to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building or structure in violation of the provisions of this code or of the order or direction made pursuant thereto. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than 30 days each. The extension shall be requested in writing and justifiable cause demonstrated."

CHAPTER 15.50 Fuel Gas Code Amendments¹⁰

¹⁰Ord. 4 § 1, adopted May 10, 2016 repealed ch. 15.50, § 15.50.010 and enacted a new ch. 15.50, § 15.50.010 as set out herein. Former ch. 15.50 pertained to similar subject matter and derived from Ord. 13, adopted 2008.

15.50.010 Sections amended.

The following sections of the International Fuel Gas Code adopted in Section 15.04.010 of this Title are amended as hereinafter provided:

- (1) The term "building official" shall be substituted for the term "code official" throughout the International Fuel Gas Code.
- (2) Section 101.1 (Title) is amended by the addition of the term "Town of Georgetown" where indicated.
- (3) Section 102.8 is amended by deleting the words "codes and" from the first sentence.
- (4) Section 108.2 is amended by deleting the section in its entirety and replacing the section with the following:

"Permit fees and all other fees shall be in the amounts established from time to time by resolution of the Board of Selectman."

- (5) Section 112 amended by deleting the sections in their entirety

CHAPTER 15.51

International Property Maintenance Code

15.51.010 International Property Maintenance Code Adopted

The International Property Maintenance Code, 2024 Edition, the purpose of which is to provide requirements for continued use and maintenance of building elements, site conditions, swimming pools, plumbing, mechanical, electrical and fire protection systems in existing residential and nonresidential structures, is hereby adopted in its entirety.

Section 2. Code sections repealed. In recognition of the fact that Municipal Code section 15.20.020(a) delegates authority to the Clear Creek Fire Authority to adopt and enforce within the Town fire codes and fire code regulations, and that the Authority has adopted the 2024 International Fire Code under that authority, the following sections of the Municipal Code are hereby repealed as unnecessary:

- Section 15.20.020(b)
- Section 15.20.040
- Section 15.20.050

Section 3. Severability. Should any one or more sections or provisions of this Ordinance or of any of the primary or secondary codes adopted by reference be judicially determined invalid or unenforceable, such judgment shall not affect, impair or invalidate the remaining provisions of this Ordinance or the codes adopted by reference hereby, the intention being that the various sections and provisions are severable.

Section 4. Repeal. Any and all ordinances or codes or parts thereof in conflict or inconsistent herewith are, to the extent of such conflict or inconsistency, hereby repealed; provided, however, that the repeal of any such ordinance or code or part thereof shall not revive any other section or part of any ordinance or code heretofore repealed or superseded and this repeal shall not affect or prevent the prosecution or punishment of any person for any act done or committed in violation of any ordinance hereby repealed prior to the effective date of this Ordinance.

Section 5. Effective date. This ordinance shall take effect upon final adoption as provided by Section 5.26 of the Territorial Charter.

INTRODUCED, READ, APPROVED AND ORDERED POSTED IN FULL ON FIRST READING on the 28th day of April, 2026.

INTRODUCED ON SECOND READING, FINALLY ADOPTED AND ORDERED POSTED AFTER PUBLIC HEARING on the 26th day of May, 2026

TOWN OF GEORGETOWN

By: Georgia Koford
Georgia Koford, Police Judge

ATTEST:

BK
Brigitte Korte, Town Clerk

Posted up in full on the Town's website and at Town Hall and two (2) other designated posting locations within the limits of the Town after final adoption, in accordance with Section 5.26 of the Territorial Charter.

BK
Brigitte Korte, Town Clerk

Date: July 7, 2026